IN THE DISTRICT COURT KASOA-OFAAKOR SITTING BEFORE HER WORSHIP LINDA AMISSAH ON MONDAY THE 21ST DAY OF JULY, 2025.

SUIT NO. CR/OF/DC/A1/16/2024

ABDULLAI MOHAMMED

(SUING AS LEADER OF THE ZONGO

COMMUNITY ADAWU –KWAO) ……. PLAINTIFF

VRS

1. AMPAABI KWAKU BRONI (TRESPASSER)

2. MR. OGYAM (TRESPASSER)

3. MR. ARTHUR (TRESPASSER)

4. MADAM HAFIYA (TRESPASSER)

ALL OF ADAWU –KWAO ……. DEFENDANTS

JUDGMENT

The plaintiff commenced this action on 10TH November 2023, seeking these reliefs endorsed on his writ of summons:

- A declaration that the Zongo Community of Adawukwao, of which the plaintiff is their leader, is the legitimate owner of all the piece of land situate and lying and being at Awutu Adawukwa in the Awutu Senya District of the

Republic of Ghana and boundaries whereof commencing from Pillar marked SGC A195/ 08/1 from a distance of 58821.85 feet on a bearing of 327degree 22'9" which bearing together with all further bearings hereinafter mentioned is referred to the Meridian 1degree West longitude from survey pillar No. SGC D 185/13/1 to SGC D 185/13/2 on a bearing of 189degree 31 ' 52" measuring 54.54 feet from No. SGC D 185/13/2 to SGC D 185/13/3 on a bearing of 243 degrees 31 ' 52" measuring 30.35 feet from xx No. SGC D 185/13/3 to SGC D 185/13/4 on a bearing of 190 degree 19 ' 44" measuring 167.13 feet from xx No. SGC D 185/13/4 to SGC D 185/13/1 on a bearing of 090 degrees 01 ' 22" measuring 80.25 feet point of commencement and hereby containing an approximate area of 0.22 acres more or less.

- A declaration that the defendants have trespassed on the plaintiff's land described above
- Recovery of possession of the land described above
- An order of perpetual injunction against the defendants, their assigns, privies, servants, and all persons claiming through them, from interference with the plaintiffs peaceful enjoyment of their land
- Damages for trespass
- Costs, including legal fees.

The defendants in the present case opted not to participate in the trial, even though hearing notices and all processes filed by the plaintiffs were served on them. In **IN RE WEST COAST DYEING IND. LTD; ADAMS V TANDOH (1987 – 88) 2 GLR 561,** *the principle was stated that when a party has refused to attend a trial and testify, the court would be entitled to proceed with the trial and determine the case based on the evidence adduced at the trial.*

The court thus had no option but to allow the plaintiffs to prove their claim.

THE CASE OF THE PLAINTIFFS

It is the case of the plaintiff that he is the chief of the Zongo Community of Adawukwao near Bawjiase. The land described above was acquired in 2010 by the leadership of the Zongo Community. The Zongo community has been in possession of this land for well over twelve years without any interference. The community has also erected a Mosque and some other structures on the land for the benefit of the members of the community. A few months ago, the defendants, except the fourth defendant, trespassed onto the land and demolished some structures on the land. The 1st, 2nd, and 3rd defendants are land guards who have placed their agents, including the 4th defendant, on the land. The 4th defendant has also placed a container on the land. The defendants are developing the land and threatening the members of the community. They are trespassers who are determined to deny the Zongo Community from peacefully enjoying a land which was legitimately acquired. The plaintiff tendered a deed of conveyance which indicated that the plaintiffs acquired the land in dispute in 2013 from Nai Kwashie Amanquandoh Adawu III and the principal elders of the Adawu Kwao. The description of the land in the deed of conveyance is the same as described in his witness statement. The plaintiff also proved their presence on the land by intimating to the court that they have a mosque erected on the land. The plaintiff, on his evidence, has proved all the essential requirements necessary to prove ownership of a land, ie, acquisition, identity, and possession.

The plaintiff indicated to the court that the 1st, 2nd, 3rd, and 4th defendants are on the land, and the 4th defendant has also placed a container on the land. The presence of the defendants on the land amounts to acts of trespass as they are there not with the permission of the plaintiff.

As the defendants failed to participate in the trial, the evidence of the plaintiff stands uncontroverted. In the circumstances, I enter judgment for the plaintiff as follows:

- The Zongo Community of Adawukwao, of which the plaintiff is their leader, is the legitimate owner of all that piece of land situate and lying and being at Awutu Adawukwa in the Awutu Senya District of the Republic of Ghana and boundaries whereof commencing from Pillar marked SGC A195/ 08/1 from distance of 58821.85 feet on a bearing of 327degree 22'9" which bearing together with all further bearings hereinafter mentioned is referred to the Meridian 1degree West longitude from survey pillar No. SGC D 185/13/1 to SGC D 185/13/2 on a bearing of 189degree 31 ' 52" measuring 54.54 feet from No. SGC D 185/13/2 to SGC D 185/13/3 on a bearing of 243 degrees 31 ' 52" measuring 30.35 feet from xx No. SGC D 185/13/3 to SGC D 185/13/4 on a bearing of 190 degrees 19 ' 44" measuring 167.13 feet from xx No. SGC D 185/13/4 to SGC D 185/13/1 on a bearing of 090 degrees 01 ' 22" measuring 80.25 feet point of commencement and hereby containing an approximate area of 0.22 acres more or less.
- It is declared that the defendants are trespassers on the land described above.
- The plaintiffs are to recover possession of the land described above
- The defendants, their assigns, privies, servants, and all persons claiming through them are perpetually restrained from interference with the plaintiffs' peaceful enjoyment of the land described above
- General damages for trespass of ghc 3,000 awarded to the plaintiffs
- Costs of ghc 5,000 awarded to the plaintiffs.

(SGD)

(H/W LINDA AMISSAH)

MAGISTRATE